

FL-25-000685 DEMINGS VS DEMINGS

County: stanislaus

Division: Family Law

Department: 13

Hearing date: 2026-09-10

Motion: Petitioner's Request for Order re Bifurcation of Date of Separation—DENIED, without prejudice. This matter is set for settlement conference on the same date as this order request and has been set for trial on December 9, 2026. In contrast to bifurcation requests to terminate marital status, there is no public policy favoring this request and the decision rests within the Court's discretion based on a showing that "resolution of the bifurcated issue is likely to simply the determination of other issues." (Cal. Rules of Ct., rule 5.390(b).) As noted in Respondent's Responsive Declaration and accompanying brief, adjudication of the date of separation entails a totality of the evidence analysis and factual findings that will only complicate and potentially delay resolution or trial of this case, given that the date of separation is inextricably intertwined with the other contested property and support issues presently set for trial and will entail substantial overlap in, or duplication of, the relevant testimony and evidence. (See, e.g., *Marriage of Reuling* (1994) 23 Cal.App.4th 1428, 1432-1433 [affirming denial of bifurcation based on trial court's opinion that lack of cooperation from counsel in framing bifurcated issues would make bifurcation inappropriate]; *Hogoboom & King*, Cal. Prac. Guide Family L. (TRG 2026) Ch. 11-D, § 11:480 ["...the fact the parties cannot agree on the matter may itself provide a sufficient basis for denying the request"], emphasis added.) Given the so-called "anti-Davis" amendment to Family Code section 70, eliminating the bright line test of cohabitation and restoring the multi-factor "intent" based analysis of prior case law, "all relevant evidence" must be considered by the Court in determining whether one spouse expressed to the other "the intent to end the marriage" and whether that spouse's conduct is "consistent" with that intent. (Fam. Code, § 70(c) ["It is the intent of the Legislature in enacting this section to abrogate the decisions in *In re Marriage of Davis* (2015) 61 Cal.4th 846 and *In re Marriage of Norviel* (2002) 102 Cal.App.4th 1152"].) The Court fails to see how setting this sort of fact-intensive and credibility-dependent decision for a long-cause trial could do anything other than force a continuance of the trial date or further delay global resolution, not to mention the unsuccessful party seeking interlocutory review. The following are the tentative ruling cases calendared before Judge Sarah Birmingham in Department #14: THERE ARE NO TENTATIVES. The following are the tentative ruling cases calendared before Judge Maria Elena Ramos-Ratliff in Department #25: THERE ARE NO TENTATIVES. Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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The following are the tentative ruling cases calendared before Judge Sarah Birmingham in Department #14:

THERE ARE NO TENTATIVES.

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